Galveston County District Court

Cause No. 2025-CV-0024

Sara Duncan, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	February 2, 2025
Plaintiff's counsel:	Danielle Sawyer, Valentine & Joyce Injury Lawyers

Parties

Plaintiff Sara Duncan is an individual residing in Texas and is the injured party in the motor veihcle collision described below. Defendant is an automobile insurance company authorized to transact insurance business in the State of Texas, which issued the policy of insurance under which Plaintiff seeks benefits and which is responsible for the obligations described in this petition.

Facts

On July 2, 2024, Plaintiff was lawfully operating a motor vehicle on a public roadway in Houston, Texas, when another vehicle traveling in the opposite direction crossed into Plaintiff's lane and collided head-on with Plaintiff's vehicle. The impact was at a low rate of speed, but it was sufficient to force Plaintiff's body against the restraint system and the interior of the vehicle. Plaintiff reported the collision to Defendant promptly and submitted a claim for coverage under the applicable policy. Plaintiff cooperated with Defendant's requests for information and documentation throughout the claims process.

Negligence

The operator of the other vehicle failed to keep a proper lookout, failed to maintain control of the vehicle, and failed to remain within the proper lane of travel, which constitutes negligence under Texas law. Defendant, as the insurer responsible for coverage, has failed to pay the bneefits owed under the policy within the time required by the Texas Insurance Code and has not provided a reasonable explanation for its delay or denial of the claim.

Damages

As a direct result of the collision, Plaintiff suffered a shoulder injury that has required medical evaluation and tretament and has caused pain, limited range of motion, and reduced ability to perform daily activities and work. Plaintiff has incurred medical expenses and lost wages and will continue to incur such losses in the future. Plaintiff seeks recovery of all benefits due under the policy, statutory interest, attorney's fees, and damages in the amount of $52,000.00, together with costs of court and such other relief as the Court deems just.